

Court No. - 44

Case :- CRIMINAL MISC. WRIT PETITION No. - 4363 of 2022

Petitioner :- Natthi Prasad

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Gaurav Maurya, Ritesh Kumar Singh

Counsel for Respondent :- G.A., Narendra Kumar Tiwari

Hon'ble Ashwani Kumar Mishra, J.

Hon'ble Rajnish Kumar, J.

It is urged that the allegations of irregularity in permanent disconnection etc., can at best be attributed to the Executive Engineer who exercised such authority under the Electricity Supply Code, 2005 but no action has been taken against him. Merely because petitioner has already superannuated in 2018, the department has implicated the petitioner. Reliance is placed upon the order of Chairman dated 4.3.2022 wherein higher officers have also been held responsible.

Before proceeding further we call upon learned counsel for respondent No. 4 to obtain specific instructions from the Department concern. It shall also be informed as to whether any action has been taken against the higher authorities ?

Put up as fresh on 5.5.2022.

Subject to petitioner co-operating in the investigation no coercive action shall be taken against the petitioner pursuant to Case Crime No. 0085 of 2022, under Sections 409 and 420 I.P.C., Police Station - Kotwali, District - Saharanpur.

Order Date :- 22.4.2022

Md Faisal

Court No. - 2

Case :- CRIMINAL MISC. WRIT PETITION No. - 4363 of 2022

Petitioner :- Natthi Prasad

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Gaurav Maurya, Ritesh Kumar Singh

Counsel for Respondent :- G.A., Narendra Kumar Tiwari

Hon'ble Dr. Kaushal Jayendra Thaker, J.

Hon'ble Gautam Chowdhary, J.

On the request of learned counsel for the petitioner, list on 8th July, 2022.

Order Date :- 22.6.2022

Vikram

Court No. - 48

Case :- CRIMINAL MISC. WRIT PETITION No. - 4363 of 2022

Petitioner :- Natthi Prasad

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Gaurav Maurya, Ritesh Kumar Singh

Counsel for Respondent :- G.A., Narendra Kumar Tiwari

Hon'ble Suneet Kumar, J.

Hon'ble Syed Waiz Mian, J.

Heard learned counsel for the parties.

By means of this petition, the petitioner has prayed for quashing of the impugned First Information Report dated 05.04.2022, registered as Case Crime No. 85 of 2022, under Sections-409, 420 I.P.C., Police Station-Kotwali, District-Saharanpur.

This Court vide order dated 22.04.2022 passed the following order:

"It is urged that the allegations of irregularity in permanent disconnection etc., can at best be attributed to the Executive Engineer who exercised such authority under the Electricity Supply Code, 2005 but no action has been taken against him. Merely because petitioner has already superannuated in 2018, the department has implicated the petitioner. Reliance is placed upon the order of Chairman dated 4.3.2022 wherein higher officers have also been held responsible.

Before proceeding further we call upon learned counsel for respondent No. 4 to obtain specific instructions from the Department concern. It shall also be informed as to whether any action has been taken against the higher authorities ?

Put up as fresh on 5.5.2022.

Subject to petitioner co-operating in the investigation no coercive action shall be taken against the petitioner pursuant to Case Crime No. 0085 of 2022, under Sections 409 and 420 I.P.C., Police Station - Kotwali, District - Saharanpur."

After having examined the pleadings and the averments made in the writ petition and perusing the allegations made in the impugned First Information Report we are not inclined to enter

into the merits of the rival submissions. The same is kept open.

However, we finally dispose of this petition with a direction to the State authorities that the petitioner shall not be arrested in respect of above stated crime number till submission of the police report under Section 173 (2) Cr.P.C., if any, before the competent Court.

It is made clear that it will be open for the State, informant/complainant/aggrieved person to move an appropriate application for recall/modification of this order, as the case may be, if there has been any material concealment of fact in the present writ petition.

Order Date :- 15.11.2022

Deepak/